

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Perri Fagin	Team: Squad #12	CCRB Case #: 201703007	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 04/17/2017 3:30 AM	Location of Incident: 101st Avenue and Lefferts Boulevard	18 Mo. SOL 10/17/2018	Precinct: 102
Date/Time CV Reported Tue, 04/18/2017 4:43 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/18/2017 4:43 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Sotira	30987	951287	102 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christophe Scheer	25222	955458	102 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Sotira	Discourtesy: Police Officer Joseph Sotira spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Joseph Sotira	Abuse: Police Officer Joseph Sotira searched the vehicle in which § 87(2)(b) was an occupant.	B . Substantiated
C . POM Joseph Sotira	Discourtesy: Police Officer Joseph Sotira spoke discourteously to § 87(2)(b)	C . Unsubstantiated

Case Summary

On April 18, 2017, § 87(2)(b) § 87(2)(b) filed this complaint with the CCRB via telephone.

On April 17, 2017, at approximately 3:30 a.m., § 87(2)(b) was driving his Cadillac Escalade in the vicinity of 101st Avenue and Lefferts Boulevard in Queens when he was pulled over by Police Officer Joseph Sotira and Police Officer Christopher Scheer, both of the 102nd Precinct, for illegal window tints. PO Scheer measured § 87(2)(b)'s tints and determined they were beyond the legal limit. PO Sotira allegedly said to § 87(2)(b) "Give me the fucking registration" (**Allegation A**). § 87(2)(b) produced his documentation, but told the officers that he only had a temporary registration as the car was new. PO Sotira shined his flashlight into the rear passenger side, and leaned into the vehicle beyond the threshold of the doorway (**Allegation B**). § 87(2)(b) told PO Sotira and PO Scheer that he recognized them from a previous incident, and that they did not need to use that against him. PO Sotira allegedly replied, "Shut the fuck up" (**Allegation C**). PO Scheer and PO Sotira returned to their vehicle and PO Scheer wrote § 87(2)(b) a summons for his front driver side window tint. PO Scheer and PO Sotira returned to § 87(2)(b) PO Scheer issued him the summons, and PO Sotira allegedly told § 87(2)(b) to "get the fuck out of here" (**Allegation C** continued). PO Scheer and PO Sotira returned to their vehicle and left.

There was no available video footage of this incident. § 87(2)(b) received a summons for an illegal tint on his front driver side window.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of July 10, 2017, § 87(2)(b) had not filed a Notice of Claim with the Office of the City Comptroller (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s third CCRB complaint (Board Review 03).
- PO Sotira has been a member-of-service for five years and has three prior CCRB complaints filed against him involving a total of 11 allegations, none of which were substantiated. In CCRB case 201607182, PO Sotira had three discourteous word allegations pleaded against him, all of which the Board found were unsubstantiated claims. PO Sotira has two additional complaints filed against him which remain open (201702635; 201704008).
- § 87(2)(b) was a witness in § 87(2)(b), also involving PO Sotira and PO Scheer; § 87(2)(g)
[REDACTED]

Findings and Recommendations

Allegation A -Discourtesy: Police Officer Joseph Sotira spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that after he was pulled over by PO Sotira and PO Scheer, his front driver window tint was measured, and he explained that his excessive tints were due to the recent purchase of his vehicle. He told PO Sotira and PO Scheer that he had an appointment to have his

tints removed. PO Sotira ordered § 87(2)(b) to give him the “fucking registration” (Board Review 05).

PO Scheer testified that he requested § 87(2)(b)'s license, registration, and insurance, and denied that PO Sotira did so. PO Sotira also testified that PO Scheer requested § 87(2)(b)'s documents; however, he did not hear the exact wording that PO Scheer used, or the contents of this conversation. Both PO Scheer and PO Sotira testified that neither of them said, “Give me the fucking registration,” or used any profanity during this incident (Board Review 06) (Board Review 07).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B –Abuse of Authority: Police Officer Joseph Sotira searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged that after he handed PO Scheer his license and insurance card, he informed him that he did not have his registration as it still needed to be mailed to him. Additionally, § 87(2)(b) stated that his license plates would likely not match his vehicle, as it was recently purchased. PO Sotira opened the rear passenger side door and shined his flashlight into the vehicle. While § 87(2)(b) did not see where PO Sotira was looking as he was seated in the front driver seat, he observed PO Sotira surpass the plane of the vehicle's doorway by leaning in up to his shoulders. PO Sotira closed the door and he and PO Scheer returned to their vehicle.

PO Sotira denied opening § 87(2)(b)'s door; however, he testified that he “possibly” leaned into the vehicle through § 87(2)(b)'s open window, breaching the plane of the doorway while shining his flashlight into the rear seats of § 87(2)(b)'s vehicle, checking for weapons or drugs. PO Sotira could not describe how far in he “possibly” leaned, but he stated that he would not have leaned in beyond his shoulders. PO Sotira saw no contraband in § 87(2)(b)'s vehicle, and “did not believe” that he observed § 87(2)(b) commit any violations throughout this incident, aside from the tinted windows. PO Sotira did not recall any issues with § 87(2)(b)'s license plates.

While PO Scheer did not recall observing these actions, he could not “speak for” PO Sotira as they were on opposite sides of the vehicle. PO Scheer testified the only violations § 87(2)(b) committed were window tints and a violation regarding his license plate. PO Scheer testified that he found a discrepancy with § 87(2)(b)'s license plates; however, PO Scheer believed § 87(2)(b) that this was due to the recent purchase of the vehicle.

§ 87(2)(g)

Breaching the plane of a car doorway to peer deeply inside the vehicle for contraband constitutes a search. People v. Hernandez, 238 A.D.2d 131 (1997) (Board Review 08). An officer needs

probable cause to search a vehicle and there must exist a nexus between the arrest and the probable cause to search. People v. Galak 81 N.Y. 2d 463 (Board Review 09)

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **substantiated**.

Allegation C -Discourtesy: Police Officer Joseph Sotira spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) was a witness to a previous CCRB case involving PO Sotira and PO Scheer, § 87(2)(b). § 87(2)(b) alleged that he told PO Sotira and PO Scheer that he recognized them, and stated, “Whatever happened before, I was just a witness. You don’t have to use that against me,” to which PO Sotira replied, “Shut the fuck up.” PO Sotira and PO Scheer returned to their vehicle before reapproaching § 87(2)(b)’s vehicle and issuing him a summons. PO Scheer handed § 87(2)(b) the summons for window tints, and § 87(2)(b) reiterated that he recognized the officers, and that “this was something personal.” PO Scheer told § 87(2)(b) he could have been issued summonses for each tinted window and his temporary registration, and PO Sotira told § 87(2)(b) to “get the fuck out of here” (Board Review 04).

PO Scheer and PO Sotira denied that PO Sotira told § 87(2)(b) to, “shut the fuck up” or “get the fuck out of here.” PO Scheer and PO Sotira denied that PO Sotira used any profanity throughout this incident. PO Sotira and PO Scheer testified that after PO Scheer issued § 87(2)(b) the summons, § 87(2)(b) accused them of doing so only because of the prior incident.

PO Scheer testified that he told § 87(2)(b) he was issued a summons as his window tints were illegal; PO Scheer did not think that PO Sotira responded to § 87(2)(b)’s accusation.

PO Sotira testified that § 87(2)(b) threatened to speak with his friend who worked for the NYPD, which would result in PO Sotira getting transferred. PO Sotira informed § 87(2)(b) that he could do that if he wished. PO Sotira testified that he remained polite throughout his conversation with § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Squad: 12

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date